

		determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement. The statute expressly provides for the court to 'enter judgment pursuant to the terms of the settlement.'" (<i>Hines v. Lukes</i> (2008) 167 Cal.App.4th 1174, 1182-1183 [internal citations omitted].) Here, Plaintiff has established there was a valid and binding settlement agreement of the case and the parties agreed to all material settlement terms. The agreement is signed by both parties and was entered into during the pendency of litigation. Plaintiff has established Defendant breached the agreement. Plaintiff states the total amount currently owed on the judgment is "the principal sum of \$120,893.89, together with prejudgment interest of \$88,337.48 (which is \$33.11 per day from December 27, 2017 through April 17, 2025 [2,668 days] using the legal rate of 10% per annum), plus the principal sum of \$21,360.29, together with prejudgment interest of \$15,438.15 (which is \$5.85 per day from January 25, 2018 through April 17, 2025 [2,639 days] using the legal rate of 10% per annum, plus costs of suit of \$535.00, and \$1,500.00 as and for the attorney's fees incurred in seeking judgment, less credits for payment(s) made of \$101,158.56, for a total judgment of \$146,906.25." (Aires Dec. ¶15) Defendant has not filed an opposition and does not dispute Plaintiff's claims. Accordingly, the Motion is GRANTED. Plaintiff is ordered to submit a proposed judgement. Plaintiff's counsel is ordered to give notice of this ruling.
11.	Claim of Garcia <i>2024-01429125</i>	Before the court is the motion for default and default judgment of forfeiture filed by petitioner People of the State of California (Petitioner). As set forth below, the motion is GRANTED. The court finds notice has been provided as required under Health and Safety Code section 11488.4. Real parties in interest Kevin Garcia and Irving Garcia were personally served with both a receipt for seizure and personal notice of intended forfeiture and the petition in the present case, including a copy of a blank "Claim Opposing Forfeiture" form with each of those notices. Petitioner also has provided evidence the notice of

		forfeiture was published once a week, for three successive weeks in the Orange County Reporter, as the property was seized in Orange County. All notices meet the statutory requirements set out in Health and Safety Code section 11488.4(f). No claim has been filed by either real party in interest Kevin Garcia or real party in interest Irving Garcia. Petitioner offers two declarations in support of the motion from investigators with the Orange County Sheriff's Department who conducted the search of the property that resulted in the seizure and interviewed the two real parties in interest. Based on the uncontroverted evidence, the court finds Petitioner has established a prima facie case in support of the petition for forfeiture, pursuant to Health and Safety Code section 11488.4(k) and 11488.5(b)(1). The motion is GRANTED, and default judgment is entered, distributing the property as set forth in Health and Safety Code section 11489. Petitioner is ordered to give notice and to submit a proposed judgment or order.
12.	The Cadle Company v. Frear <i>2025-01452135</i>	The order to show cause hearing on the application for order for sale of dwelling is CONTINUED TO MAY 29, 2025, AT 2:00 P.M., IN DEPARTMENT C23, at the joint request of the parties.
13.	In re 12892 Lampson Ave., Garden Grove, CA 92840 <i>2024-01410035</i>	Before the court are two claims for surplus funds. The first is a motion for claim of surplus funds filed by Anthony Cain and Kitty Ho Cain (collectively, Cains). As set forth below, the Cains' motion is DENIED. The second is a motion for claim of surplus funds filed by Trung Van Ho and Huong-Duong Ho (collectively, Hos). The Hos' motion is GRANTED as set forth below. On March 6, 2025, the court granted the unopposed petition by petitioner National Default Servicing Corporation (National) to deposit surplus funds in the amount of \$472,799.24 resulting from the December 11, 2023 trustee's sale (Trustee's Sale) of the real property located at 12892 Lampson Avenue, Garden Grove, California 92840 (Property). On March 10, 2025, \$472,799.24 in surplus funds were deposited by Tiffany & Bosco, P.A. "Within 90 days after deposit with the clerk, the court shall consider all claims filed at least 15 days